

Before the
U.S. COPYRIGHT OFFICE, LIBRARY OF CONGRESS

In the Matter of
Public Study to assess the operation of section 1201 of Title 17

Comments of iFixit

March 3, 2016

Submitted by:

Kyle Wiens, co-founder iFixit

1330 Monterey St.

San Luis Obispo, CA 93401

About iFixit

iFixit is the international, open-source, online repair manual for everything. iFixit represents a global community of makers, hardware hackers, fixers, tinkerers, and repair professionals. The iFixit community is over one million people strong—and the collaborative group has published nearly 20,000 repair guides on iFixit.com. As a founding member of The Repair Association, iFixit also stands firm in its support of tinkerers and independent repair professionals.

iFixit also joins in and supports the comments submitted by the USC Intellectual Property Law Clinic, addressing the second and seventh inquiries in the Notice.

A Preliminary Comment Concerning Section 1201

How many people does it take to fix a tractor? A year ago, I would have said it took just one person. One person with a broken tractor, a free afternoon, and a box of tools. I would have been wrong.

When the repair involves a tractor's computer, it actually takes an army of copyright lawyers, dozens of representatives from U.S. government agencies, an official hearing, hundreds of pages

of legal briefs, and nearly a year of waiting. Waiting for the Copyright Office to make a decision about whether people like me can repair, modify, or hack their own stuff.

I'm a repairman by trade and a software engineer by education. I fix things—especially things with computers in them. And I run an online community of experts called iFixit¹ that teaches other people how to fix broken equipment. When a farmer friend of mine wanted to know if there was a way to tweak the copyrighted software of his broken tractor,² I knew it was going to be rough. Because it required an exemption to the DMCA—and getting an exemption is easier said than done.

Anyone can petition the office for an exemption, but realistically speaking, you can only shepherd an exemption through the process if you possess (a) limitless free time and a superhuman knowledge of copyright law or (b) the funding to hire expensive intellectual property lawyers.

I did everything a layperson could do. I wrote comments in support of several exemptions; I helped the document how difficult it was for local farmers to repair their equipment; I testified in front of the Copyright Office; I helped collect 40,000 public comments³ in support of copyright reform. But when it came down to it, the Copyright Office requires a well-defended legal argument for proposed exemptions. And a well-defended legal argument meant lawyers—lots of them—working on the issue for a year.

Regular people can't hire an army of copyright lawyers. The financial burden would be crippling. The only people who have enough money and enough time to participate in the process are the people trying to defeat the exemptions in the first place. Almost every single one of the 27 exemptions, including security research for vehicles and DVD ripping for educational uses, was met with opposition from well-funded, well-lawyered copyright interests—the Motion Picture Association of America, the Recording Industry Association of America, the Entertainment Software Association, and the Alliance of Automobile Manufacturers.

The rulemaking process is stacked in the favor of copyright interests. It's up to proponents to show that an exemption is necessary, and that it meets the legal standard for fair use. Which means petitioners are caught in a Catch-22: In order to meet the standard for relevance, we need to show that there's overwhelming market demand *if only it were legal*. But in order to argue we are practicing fair use, we have to admit to already breaking these locks, and therefore the law. Consequently, the very people who need the exemptions most are often reluctant to participate. Especially since few proposed exemptions historically survive the rulemaking.

Last year, however, was different. A huge group of pro bono intellectual property lawyers donated their time and expertise to defend exemptions. Without the thousands of hours—and hundreds of thousands of dollars—of legal time donated by institutions like the USC's

¹ iFixit.com

² Kyle Wiens, *New High-Tech Farm Equipment Is a Nightmare for Farmers*, WIRED (Feb. 5, 2015), <http://www.wired.com/2015/02/new-high-tech-farm-equipment-nightmare-farmers/>.

³ Julia Bluff, *We Just Sent 40,000 Comments Demanding Reform to the Copyright Office*, iFixit (Feb 10, 2015), <http://ifixit.org/blog/7018/copyright-office/>

Technology Law Clinic, the Stanford Law Clinic, and the Electronic Frontier Foundation, these exemptions would never have gotten off the ground.

Even though we earned an exemption for tractor repair, it was so narrow as to become functionally useless. The Copyright Office said that only the farmer, and not her mechanic, could tinker with the software. This restriction is out of touch with the real world, where independent technicians are critical.

Worse, these hard-won exemptions last only until three years. (In the case of motor vehicles, the exemption doesn't even go into effect for a year after the ruling.) Soon, proponents will have to find a way to do this all over again. This is not sustainable process—not for participants and not for the Copyright Office. There were 27 different exemptions considered during the last rulemaking. Next time, there will be even more.

I am respectfully urging the Copyright Office to make these exemptions less narrowly crafted. For the purposes of repair and modification, third-party agents—like mechanics or programmers—should be able to act on the behalf of the owner. Without third-party assistance, many of these exemptions are useless in the real world. Instead of making supporters go to extreme lengths to show that an exemption is absolutely necessary, how about asking the opposition to show that an exemption is absolutely unnecessary? At the very least, the three-year expiration date on exemptions should be removed. Once granted, exemptions should be automatically renewed, especially when there is no meaningful opposition to renewal.